

| FDE #  | FDE Name                   | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                                                                                                                       | STRM Rationale | STRM Relationship | SCF Control | SCF # | Secure Controls Framework (SCF) Control Description | Strength of Relationship | Notes |
|--------|----------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|-------------|-------|-----------------------------------------------------|--------------------------|-------|
| Part 1 | Preliminary and General    | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                            | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.1    | N/A                        | Short title, citation and commencement. This Act may be cited as the Data Protection Act 2018. It may be cited together with the Data Protection Acts 1988 and 2003 as the Data Protection Acts 1988 to 2018. The Act comes into operation on such day(s) as the Minister may appoint by order, and different days may be appointed for different provisions.                                                                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.2    | N/A                        | Interpretation. Defines key terms used throughout the Act, including: 'Act of 1988' (Data Protection Act 1988); 'authorised officer'; 'chairperson'; 'civil servant'; 'Commission' (the Data Protection Commission); 'Commissioner'; 'Data Protection Regulation' (GDPR); 'Directive' (Law Enforcement Directive 2016/680); 'enactment'; 'local authority'; 'Minister'; 'political party'; 'public authority'; and 'prescribe'.                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.3    | N/A                        | Designation by appropriate authority. Provides that an appropriate authority may, by designation, make a body or person subject to the Act for purposes of the Data Protection Regulation or Directive where required for implementation purposes.                                                                                                                                                                                             | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.4    | N/A                        | Obligation not to require data subject to exercise right of access in certain circumstances. Prohibits a person from requiring a data subject to make a subject access request under the Data Protection Regulation or Directive as a condition of employment, provision of a service, or any other purpose, where the request would result in the disclosure of information relating to spent convictions or sensitive processing activities. | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.5    | N/A                        | Expenses. Provides that expenses incurred by the Minister in administering this Act shall be paid out of moneys provided by the Oireachtas.                                                                                                                                                                                                                                                                                                    | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.6    | N/A                        | Regulations. Empowers the Minister to make regulations for the purposes of giving effect to this Act, and sets procedural requirements including laying regulations before the Oireachtas.                                                                                                                                                                                                                                                     | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.7    | N/A                        | Repeals and revocations. Repeals specified provisions of the Data Protection Act 1988 and revokes statutory instruments listed in Schedule 1, upon the establishment day.                                                                                                                                                                                                                                                                      | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.8    | N/A                        | Application of Data Protection Act 1988. Provides savings and transitional provisions to ensure continuity of legal proceedings, rights, and obligations under the Act of 1988 pending full transition to the new regime.                                                                                                                                                                                                                      | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 2 | Data Protection Commission | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                            | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.9    | N/A                        | Establishment day. The Minister shall, by order, appoint a day to be the establishment day for the purposes of this Act, on which the Data Protection Commission comes into existence.                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.10   | N/A                        | Establishment of Data Protection Commission. On the establishment day there shall stand established a body to be known as An Coimisiún um Chosaint Sonraí or, in English, the Data Protection Commission. Schedule 2 governs its constitution and governance.                                                                                                                                                                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.11   | N/A                        | Supervisory authority for Data Protection Regulation and Directive. Designates the Data Protection Commission as the supervisory authority in the State for the purposes of the GDPR and the Law Enforcement Directive, and vests it with all powers and functions required under those instruments.                                                                                                                                           | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.12   | N/A                        | Functions of Commission. Sets out the general functions of the Commission in addition to those assigned under the GDPR and Directive, including functions conferred by or under this Act, functions transferred from the former Data Protection Commissioner, and such other functions as may be assigned by the Minister.                                                                                                                     | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.13   | N/A                        | Performance of functions of Commission by Commissioner or member of staff. Permits the Commission to authorise a Commissioner or suitably qualified member of staff to perform specified functions on its behalf.                                                                                                                                                                                                                              | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.14   | N/A                        | Transfer of functions of Data Protection Commissioner to Commission. Transfers all functions of the former Data Protection Commissioner to the Commission upon the establishment day.                                                                                                                                                                                                                                                          | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.15   | N/A                        | Membership of Commission. Provides for the Commission to consist of a chairperson and such number of other Commissioners as may be prescribed, all appointed by the President of Ireland on the nomination of the Government following a resolution of both Houses of the Oireachtas.                                                                                                                                                          | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.16   | N/A                        | Appointment of chairperson of Commission. Sets out the procedure and qualifications for the appointment of the chairperson, including that the appointee must possess the qualifications and experience necessary for the proper and effective performance of the Commission's functions.                                                                                                                                                      | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.17   | N/A                        | Resignation, removal, disqualification of Commissioner. Ineligibility to become Commissioner. Sets out circumstances in which a Commissioner ceases to hold office, including resignation, incapacity, or removal by the President on the passing of resolutions by both Houses of the Oireachtas.                                                                                                                                             | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.18   | N/A                        | Acting Commissioner. Allows a suitably qualified member of staff to act in the place of a Commissioner in circumstances of absence, incapacity, or vacancy.                                                                                                                                                                                                                                                                                    | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.19   | N/A                        | Accountability of Commissioner to Oireachtas Committees. Requires the Commissioner, when directed by an Oireachtas Committee, to appear before it to give account of the Commission's activities, subject to legally privileged matters.                                                                                                                                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.20   | N/A                        | Assignment and transfer of staff to Commission. Provides for the transfer of staff from the former Data Protection Commissioner to the Commission upon the establishment day, preserving their terms and conditions.                                                                                                                                                                                                                           | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.21   | N/A                        | Staff of Commission. Empowers the Commission to appoint such staff as it considers necessary for the performance of its functions, subject to Ministerial consent on numbers and grades.                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.22   | N/A                        | Superannuation of Commissioners. Sets out provisions governing superannuation benefits for Commissioners, including the applicable terms, pension entitlements, and references to relevant superannuation legislation.                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.23   | N/A                        | Accounts of Commission. Requires the Commission to keep proper accounts, to be audited annually by the Comptroller and Auditor General.                                                                                                                                                                                                                                                                                                        | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.24   | N/A                        | Annual report. Requires the Commission to prepare and publish an annual report of its activities, to be laid before both Houses of the Oireachtas.                                                                                                                                                                                                                                                                                             | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.25   | N/A                        | Accountability for accounts of Commission. Requires the chairperson of the Commission to appear before the Committee of Public Accounts to account for the Commission's expenditure when directed.                                                                                                                                                                                                                                             | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.26   | N/A                        | Prohibition on disclosure of confidential information. Prohibits the Commission, its Commissioners, and staff from disclosing confidential information obtained in the performance of their functions, subject to specified exceptions.                                                                                                                                                                                                        | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.26A  | N/A                        | Prohibition on disclosure of confidential information by persons engaging with Commission in connection with relevant function. Extends the prohibition on disclosing confidential information to persons who engage with the Commission in connection with a relevant function under the GDPR.                                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.27   | N/A                        | Civil proceedings for contravention of section 26. Provides that a person who suffers loss or damage as a result of an unauthorised disclosure under section 26 or 26A may bring civil proceedings for damages against the person responsible.                                                                                                                                                                                                 | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 3 | Data Protection Regulation | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                            | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |

**NIST IR 8477-Based Set Theory Relationship Mapping (STRM)**

**Reference Document:** Secure Controls Framework (SCF) version 2026.2

**STRM Guidance:** <https://securecontrolsframework.com/start-here/set-theory-relationship-mapping-strm/>

**Focal Document:** Ireland - Data Protection Act (DPA) (2018)

**Focal Document URL:** <https://revisedacts.lawreform.ie/eli/2018/act/7/revised/en/html>

**Published STRM URL:** <https://content.securecontrolsframework.com/strm/scf-strm-emea-iri-dpa-2018.pdf>

| FDE #              | FDE Name                                                                                                                        | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                                                                                                                            | STRM Rationale | STRM Relationship | SCF Control                              | SCF #    | Secure Controls Framework (SCF) Control Description                                                                                                                                                                                                                                                                                                                                            | Strength of Relationship | Notes |
|--------------------|---------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|------------------------------------------|----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|-------|
| Part 3 - Chapter 1 | General                                                                                                                         | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.28               | N/A                                                                                                                             | Fees. The Commission may, with the consent of the Minister, prescribe fees to be paid to it for performance of its functions under Article 57(1)(i) and (s) of the GDPR, and in relation to manifestly unfounded or excessive requests under Article 57(4).                                                                                                                                                                                         | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.29               | N/A                                                                                                                             | Child for purposes of application of Data Protection Regulation. For the purposes of applying the GDPR in the State, a 'child' means a person under the age of 18 years.                                                                                                                                                                                                                                                                            | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.30               | N/A                                                                                                                             | Micro-targeting and profiling of children. It is an offence under this Act for any company or corporate body to process the personal data of a child for the purposes of direct marketing, profiling, or micro-targeting. Such an offence is punishable by an administrative fine under section 141.                                                                                                                                                | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.31               | N/A                                                                                                                             | Consent of child in relation to information society services. Sets the age of consent for information society services at 16 years for the purposes of Article 8 GDPR. Preventative or counselling services are excluded from the definition of information society services for this purpose. The Minister is required to review this age threshold within four years of commencement.                                                             | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.32               | N/A                                                                                                                             | Codes of conduct: children. Requires the Commission to encourage the drawing up of codes of conduct under Article 40 GDPR addressing the protection of children, parental consent, safeguards for children's data, and restrictions on direct marketing and profiling of children.                                                                                                                                                                  | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.33               | N/A                                                                                                                             | Right to be forgotten: children. Requires controllers to erase personal data of data subjects who were children when the data was collected in connection with information society services, upon request, in accordance with Article 17 GDPR. Controllers who have disclosed such data to other controllers must take reasonable steps to inform those controllers of the erasure request.                                                         | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.34               | N/A                                                                                                                             | Designation of data protection officer. Empowers the Minister to make regulations requiring controllers, processors, and representative bodies to designate a data protection officer under Article 37(4) GDPR, having regard to the need for data protection.                                                                                                                                                                                      | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.35               | N/A                                                                                                                             | Accreditation of certification bodies by Irish National Accreditation Board. Designates the Irish National Accreditation Board as the accreditation body in the State for the purposes of Article 43 GDPR, responsible for accrediting certification bodies that issue data protection certifications.                                                                                                                                              | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.36               | N/A                                                                                                                             | Suitable and specific measures for processing. Sets out what suitable and specific measures to safeguard fundamental rights and freedoms may include when such measures are required by this Act, including explicit consent, pseudonymisation, data minimisation, staff training, access controls, and internal review procedures.                                                                                                                 | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.37               | N/A                                                                                                                             | Limitation on transfers of personal data outside the European Union. Empowers the Minister, in the absence of an adequacy decision under Article 45 GDPR, to make regulations restricting transfers of categories of personal data to a third country or international organisation for important reasons of public policy.                                                                                                                         | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.38               | N/A                                                                                                                             | Processing for a task carried out in the public interest or in the exercise of official authority. Processing of personal data is lawful to the extent it is necessary and proportionate for the performance of a statutory function of a controller, for administration of non-statutory schemes backed by statutory functions, or for preserving the Common Travel Area. The Minister may specify additional public interest tasks by regulation. | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.39               | N/A                                                                                                                             | Communication with data subjects by political parties, candidates for and holders of certain elective political offices. Processing of personal data for direct marketing communications to data subjects by political parties, candidates, and elected officeholders is lawful where suitable and specific measures are taken, subject to the right to object under Article 21 GDPR.                                                               | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.40               | N/A                                                                                                                             | Processing of personal data and special categories of personal data by elected representatives. Processing by elected representatives (members of the Oireachtas, MEPs, and local authority members) is lawful where necessary to respond to requests or representations made on behalf of data subjects, subject to suitable and specific measures.                                                                                                | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.41               | N/A                                                                                                                             | Processing for purpose other than purpose for which data collected. Processing personal data for a purpose other than that for which it was collected is lawful to the extent it is necessary and proportionate for preventing threats to national security, defence, or public security; for preventing serious loss or damage to persons or property; or for other specified public interest purposes.                                            | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.42               | N/A                                                                                                                             | Processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes. Permits processing of personal data and special categories for archiving, scientific or historical research, and statistical purposes, subject to suitable and specific safeguards, and provides for derogations from certain data subject rights in this context.                                                    | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.43               | N/A                                                                                                                             | Data processing and freedom of expression and information. Provides that processing of personal data is lawful where necessary for the purposes of journalistic, academic, artistic, or literary expression, to the extent it is in the public interest and proportionate, balancing privacy with freedom of expression. The Commission may refer questions of law to the High Court.                                                               | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.44               | N/A                                                                                                                             | Data processing and public access to official documents. Provides that personal data in records may be disclosed under a Freedom of Information request, and environmental information may be disclosed under the Access to Information on the Environment Regulations, subject to the GDPR and this Act.                                                                                                                                           | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| Part 3 - Chapter 2 | Processing of Special Categories of Personal Data and Processing of Personal Data Relating to Criminal Convictions and Offences | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                            | 0                        |       |
| s.45               | N/A                                                                                                                             | Processing of special categories of personal data. Sets out the conditions under which processing of special categories of personal data as defined in Article 9 GDPR is lawful in the State, supplementing the derogations provided in Article 9(2) and requiring suitable and specific safeguards in all cases.                                                                                                                                   | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations. | 5                        |       |
| s.46               | N/A                                                                                                                             | Processing of special categories of personal data for purposes of employment and social welfare law. Processing of special categories of personal data is lawful where necessary for the purposes of carrying out obligations and exercising rights in the field of employment law, social security law, and social protection law, subject to appropriate safeguards.                                                                              | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations. | 5                        |       |
| s.47               | N/A                                                                                                                             | Processing of special categories of personal data for purpose of legal advice and legal proceedings. Processing is lawful where necessary for the purposes of providing or obtaining legal advice or for use in legal proceedings, prospective legal claims, or for establishing, exercising, or defending legal rights.                                                                                                                            | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations. | 5                        |       |

| FDE #              | FDE Name                                                                                           | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                                                                                                                                            | STRM Rationale | STRM Relationship | SCF Control                              | SCF #    | Secure Controls Framework (SCF) Control Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Strength of Relationship | Notes |
|--------------------|----------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|------------------------------------------|----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|-------|
| s.48               | N/A                                                                                                | Processing of personal data revealing political opinions for electoral activities and functions of Referendum Commission. Processing of personal data revealing political opinions is lawful where carried out in the course of electoral activities by a political party, a candidate for election, an elected officeholder, or by An Coimisiún Togtha in performance of its functions.                                                                            | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| s.49               | N/A                                                                                                | Processing of special categories of personal data for purposes of administration of justice and performance of functions. Processing is lawful where necessary for the administration of justice and the performance of statutory functions by courts, tribunals, and other bodies exercising judicial or quasi-judicial functions.                                                                                                                                 | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| s.50               | N/A                                                                                                | Processing of special categories of personal data for insurance and pension purposes. Processing is lawful where necessary for the assessment of risk or the performance of an insurance or pension contract, or where necessary for management, administration, or enforcement of a pension scheme, subject to specified conditions.                                                                                                                               | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| s.51               | N/A                                                                                                | Processing of special categories of personal data and Article 10 data for reasons of substantial public interest. Regulations may be made authorising processing of special categories of personal data and Article 10 data (criminal convictions and offences) where necessary for reasons of substantial public interest, identifying the specific public interest and the safeguards required.                                                                   | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| s.52               | N/A                                                                                                | Processing of special categories of personal data for purposes of Article 9(2)(h). Processing is lawful for the purposes of preventive or occupational medicine, medical diagnosis, the provision of health or social care, management of health or social care systems, or pursuant to a contract with a health practitioner, where undertaken by or under the responsibility of a health practitioner or a person bound by an equivalent duty of confidentiality. | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| s.53               | N/A                                                                                                | Processing of special categories of personal data for purposes of public interest in the area of public health. Processing is lawful where necessary for public health reasons, including protection against serious cross-border threats to health and ensuring high standards of quality and safety of health care and medicinal products, subject to suitable and specific measures.                                                                             | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| s.54               | N/A                                                                                                | Processing of special categories of personal data for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes. Permits processing of special categories for archiving, research, and statistical purposes subject to suitable safeguards and derogations from certain data subject rights where necessary.                                                                                                    | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| s.55               | N/A                                                                                                | Processing of personal data relating to criminal convictions and offences. Processing of personal data relating to criminal convictions and offences under Article 10 GDPR is lawful only when carried out under the control of official authority or when authorised by regulations made under section 51. Regulations must identify the substantial public interest concerned and required safeguards.                                                            | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD) | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| Part 3 - Chapter 3 | Rights, and Restrictions of Rights, of Data Subject and Restrictions on Obligations of Controllers | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Functional     | No Relationship   | N/A                                      | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 0                        |       |
| s.56               | N/A                                                                                                | Right of access to results and scripts of examination and results of appeal. The right of access under Article 15 GDPR applies to examination scripts and results, but access may be restricted to deferred access (after results are published) and may exclude third-party information. Defines 'script' broadly to include written, digital, audio, and visual examination work.                                                                                 | Functional     | Intersects With   | Data Subject Empowerment                 | PRI-06   | Mechanisms exist to provide authenticated data subjects the ability to:<br>(1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access;<br>(2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed;<br>(3) Obtain the source(s) of their PD;<br>(4) Obtain the categories of their PD being collected, received, processed, stored and shared;<br>(5) Request correction to their PD due to inaccuracies;<br>(6) Request erasure of their PD; and<br>(7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD. | 5                        |       |
| s.57               | N/A                                                                                                | Rights in relation to automated decision making. For the purposes of Article 22(2)(b) GDPR, the right not to be subject to automated decision-making shall not apply where the decision is authorised or required by or under an enactment containing appropriate safeguards, or is necessary for the performance of a contract, provided suitable measures to safeguard the data subject are taken.                                                                | Functional     | Intersects With   | Data Subject Empowerment                 | PRI-06   | Mechanisms exist to provide authenticated data subjects the ability to:<br>(1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access;<br>(2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed;<br>(3) Obtain the source(s) of their PD;<br>(4) Obtain the categories of their PD being collected, received, processed, stored and shared;<br>(5) Request correction to their PD due to inaccuracies;<br>(6) Request erasure of their PD; and<br>(7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD. | 5                        |       |
| s.58               | N/A                                                                                                | Direct marketing for purposes of Article 21. For the purposes of Article 21(2) and (3) GDPR, data subjects have the right to object to processing of their personal data for direct marketing purposes at any time, and controllers must make this right clearly and separately visible from other information.                                                                                                                                                     | Functional     | Intersects With   | Data Subject Empowerment                 | PRI-06   | Mechanisms exist to provide authenticated data subjects the ability to:<br>(1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access;<br>(2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed;<br>(3) Obtain the source(s) of their PD;<br>(4) Obtain the categories of their PD being collected, received, processed, stored and shared;<br>(5) Request correction to their PD due to inaccuracies;<br>(6) Request erasure of their PD; and<br>(7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD. | 5                        |       |

**NIST IR 8477-Based Set Theory Relationship Mapping (STRM)**

**Reference Document:** Secure Controls Framework (SCF) version 2026.2

**STRM Guidance:** <https://securecontrolsframework.com/start-here/set-theory-relationship-mapping-strm/>

**Focal Document:** Ireland - Data Protection Act (DPA) (2018)

**Focal Document URL:** <https://revisedacts.lawreform.ie/eli/2018/act/7/revised/en/html>

**Published STRM URL:** <https://content.securecontrolsframework.com/strm/scf-strm-amea-iri-dpa-2018.pdf>

| FDE #              | FDE Name                                                                          | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | STRM Rationale | STRM Relationship | SCF Control                       | SCF #     | Secure Controls Framework (SCF) Control Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Strength of Relationship | Notes |
|--------------------|-----------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|-----------------------------------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|-------|
| s.59               | N/A                                                                               | Restriction on right of data subject to object to processing for election purposes and processing by Referendum Commission. The right to object under Article 21 GDPR does not apply to processing of personal data revealing political opinions carried out in the course of electoral activities by a political party, candidate, or elected officeholder, or by An Coimisiún Toghcháin.                                                                                                                                                                                      | Functional     | Intersects With   | Data Subject Empowerment          | PRI-06    | Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD. | 5                        |       |
| s.60               | N/A                                                                               | Restrictions on obligations of controllers and rights of data subjects for important objectives of general public interest. Restricts the rights and obligations in Articles 12–22 and Article 34 GDPR to the extent necessary and proportionate to safeguard cabinet confidentiality, parliamentary privilege, national security, defence, public security, prevention of crime, revenue collection, civil proceedings, and professional regulatory functions. The Minister may also make regulations imposing further restrictions for additional public interest objectives. | Functional     | Intersects With   | Data Subject Empowerment          | PRI-06    | Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD. | 5                        |       |
| s.61               | N/A                                                                               | Restriction on exercise of data subjects' rights: archiving purposes in the public interest, scientific or historical research purposes or statistical purposes. Restricts data subject rights under Articles 15, 16, 18, and 21 GDPR to the extent that exercising those rights would seriously impair the achievement of archiving, research, or statistical purposes, subject to appropriate safeguards.                                                                                                                                                                     | Functional     | Intersects With   | Data Subject Empowerment          | PRI-06    | Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD. | 5                        |       |
| Part 4             | Provisions Consequent on Repeal of Certain Provisions of Data Protection Act 1988 | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.62               | N/A                                                                               | Transfer of property of Data Protection Commissioner to Commission. All property, real and personal, of the former Data Protection Commissioner vests in and is transferred to the Commission on the establishment day.                                                                                                                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.63               | N/A                                                                               | Transfer of rights and liabilities of Data Protection Commissioner to Commission. All rights and liabilities of the former Data Protection Commissioner arising by virtue of any contract or commitment transfer to the Commission on the establishment day and may be enforced by or against the Commission.                                                                                                                                                                                                                                                                   | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.64               | N/A                                                                               | Liability for loss occurring before establishment day. Claims in respect of any loss or injury arising from the performance of the former Data Protection Commissioner's functions before the establishment day may be brought against the Commission as if the loss had occurred after establishment.                                                                                                                                                                                                                                                                          | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.65               | N/A                                                                               | Provisions consequent upon transfer of functions, assets, rights and liabilities to Commission. Provides for continuity of legal proceedings, instruments, and references to the former Data Protection Commissioner after the establishment day, substituting the Commission in all relevant contexts.                                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.66               | N/A                                                                               | Final accounts and final annual report of Data Protection Commissioner. The Commission must prepare final accounts and a final annual report for the former Data Protection Commissioner covering the period up to the establishment day, to be audited and laid before the Oireachtas within specified timeframes.                                                                                                                                                                                                                                                             | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.67               | N/A                                                                               | Saver for scheme relating to superannuation. Superannuation schemes made under the Data Protection Act 1988 that were in force immediately before commencement of the repeal provisions continue in force as if made under the corresponding provisions of this Act.                                                                                                                                                                                                                                                                                                            | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.68               | N/A                                                                               | Saver for regulations under Act of 1988. Regulations made under the Data Protection Act 1988 that were in force immediately before commencement of the repeal provisions continue in force to the extent not inconsistent with this Act.                                                                                                                                                                                                                                                                                                                                        | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| Part 5             | Processing of Personal Data for Law Enforcement Purposes                          | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| Part 5 - Chapter 1 | Preliminary and General                                                           | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.69               | N/A                                                                               | Interpretation (Part 5). Defines key terms for Part 5 including: 'biometric data'; 'competent authority' (public authorities and other bodies authorised by law for prevention, investigation, detection or prosecution of criminal offences and execution of criminal penalties); 'controller'; 'personal data breach'; 'processor'; 'profiling'; 'recipient'; 'restriction of processing'; and 'supervisory authority'. Also specifies how terms align with the Law Enforcement Directive.                                                                                    | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.70               | N/A                                                                               | Application of Part 5. Part 5 applies to processing of personal data by or on behalf of a controller where processing is carried out for law enforcement purposes (prevention, investigation, detection, prosecution of criminal offences, execution of criminal penalties, and safeguarding against threats to public security), whether by automated or non-automated means that form part of a relevant filing system.                                                                                                                                                       | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| Part 5 - Chapter 2 | General Principles of Data Protection                                             | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.71               | N/A                                                                               | Processing of personal data. Sets out the data protection principles applicable to law enforcement processing: lawfulness and fairness; purpose limitation; adequacy and relevance; accuracy; storage limitation; integrity and confidentiality; and accountability. Also establishes obligations for distinguishing personal data of different categories of data subjects and for distinguishing facts from personal assessments.                                                                                                                                             | Functional     | Intersects With   | Reasonable Data Privacy Practices | PRI-01.11 | Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 5                        |       |
| s.72               | N/A                                                                               | Security measures for personal data. Controllers must implement appropriate technical and organisational security measures to protect personal data against accidental or unlawful destruction, loss, alteration, or unauthorised disclosure or access. Processors must act only on documented instructions from the controller.                                                                                                                                                                                                                                                | Functional     | Intersects With   | Security of Personal Data (PD)    | PRI-01.6  | Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | 5                        |       |

| FDE #              | FDE Name                                           | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                                             | STRM Rationale | STRM Relationship | SCF Control                                                   | SCF #    | Secure Controls Framework (SCF) Control Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Strength of Relationship | Notes |
|--------------------|----------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|---------------------------------------------------------------|----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|-------|
| s.73               | N/A                                                | Processing of special categories of personal data (Part 5). Processing of special categories of personal data in the law enforcement context is permitted only where strictly necessary, subject to appropriate safeguards, and carried out under specific authorisation or as otherwise prescribed.                                                                 | Functional     | Intersects With   | Usage Restrictions of Personal Data (PD)                      | PRI-05.4 | Mechanisms exist to restrict collecting, receiving, processing, storing, transmitting, sharing and/or updating Personal Data (PD) to:<br>(1) The purpose(s) originally collected, consistent with the data privacy notice(s);<br>(2) What is authorized by the data subject, or authorized agent; and<br>(3) What is consistent with applicable laws, regulations and contractual obligations.                                                                                                                                                                                                                                                                                                                                                                                                                                                | 5                        |       |
| s.74               | N/A                                                | Data quality. Controllers must take all reasonable steps to ensure that personal data that is inaccurate, incomplete, or no longer up to date is not transmitted or made available. They must verify data quality at the source and ensure that personal data transmitted to competent authorities is updated with corrections or deletions.                         | Functional     | Intersects With   | Personal Data (PD) Accuracy & Integrity                       | PRI-05.2 | Mechanisms exist to ensure the accuracy and relevance of Personal Data (PD) throughout the information lifecycle by:<br>(1) Keeping PD up-to-date; and<br>(2) Remediating identified inaccuracies, as necessary.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | 5                        |       |
| Part 5 - Chapter 3 | Obligations of Controllers and Processors          | N/A                                                                                                                                                                                                                                                                                                                                                                  | Functional     | No Relationship   | N/A                                                           | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 0                        |       |
| s.75               | N/A                                                | General obligations of controller with regard to technical and organisational measures. Controllers must implement appropriate technical and organisational measures to ensure processing complies with Part 5, and must review those measures at regular intervals. They must also maintain documentation sufficient to demonstrate compliance.                     | Functional     | Intersects With   | Security of Personal Data (PD)                                | PRI-01.6 | Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 5                        |       |
| s.76               | N/A                                                | Data protection by design and by default. Controllers must implement data protection by design and by default, taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of processing, to ensure that only personal data necessary for each specific purpose is processed.                                 | Functional     | Intersects With   | Security of Personal Data (PD)                                | PRI-01.6 | Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 5                        |       |
| s.77               | N/A                                                | Security of automated processing. Controllers and processors must implement appropriate technical and organisational measures to ensure a level of security appropriate to the risks arising from automated processing, including measures to prevent unauthorised access to processing equipment.                                                                   | Functional     | Intersects With   | Security of Personal Data (PD)                                | PRI-01.6 | Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 5                        |       |
| s.78               | N/A                                                | Technical and organisational measures. Specifies particular technical and organisational measures that controllers must implement, including measures to ensure ongoing confidentiality, integrity, availability, and resilience of processing systems, and the ability to restore availability following incidents.                                                 | Functional     | Intersects With   | Security of Personal Data (PD)                                | PRI-01.6 | Mechanisms exist to ensure Personal Data (PD) is protected by logical and physical security safeguards that are sufficient and appropriately scoped to protect the confidentiality and integrity of the PD.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 5                        |       |
| s.79               | N/A                                                | Joint controllers. Where two or more controllers jointly determine the purposes and means of processing, they are joint controllers and must by agreement determine their respective responsibilities for compliance with Part 5, making the essence of the arrangement available to data subjects.                                                                  | Functional     | Intersects With   | Joint Processing of Personal Data (PD)                        | PRI-07.2 | Mechanisms exist to clearly define and communicate the organization's role in processing Personal Data (PD) in the data processing ecosystem.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | 5                        |       |
| s.80               | N/A                                                | Processors. Controllers must only use processors providing sufficient guarantees to implement appropriate technical and organisational measures in compliance with Part 5. Processing by a processor must be governed by a binding contract or legal act. Processors may not sub-contract without prior specific or general written authorisation of the controller. | Functional     | Intersects With   | Data Privacy Requirements for Contractors & Service Providers | PRI-07.1 | Mechanisms exist to include data privacy requirements in contracts and other acquisition-related documents that establish data privacy roles and responsibilities for contractors and service providers.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 5                        |       |
| s.81               | N/A                                                | Record of data processing activities. Controllers and processors must maintain a record of all categories of processing activities carried out on their behalf, containing specified information about the processing. The record must be made available to the Commission on request.                                                                               | Functional     | Intersects With   | Documenting Data Processing Activities                        | PRI-14   | Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 5                        |       |
| s.82               | N/A                                                | Data logging for automated processing system. Controllers must maintain logs for collection, alteration, consultation, disclosure, combination, and erasure of personal data in automated processing systems, for the purpose of verifying lawfulness and self-monitoring.                                                                                           | Functional     | Intersects With   | Documenting Data Processing Activities                        | PRI-14   | Mechanisms exist to document Personal Data (PD) processing activities that covers collection, receiving, processing, storage, transmission, sharing, updating and/or disposal actions with sufficient detail to demonstrate conformity with applicable statutory, regulatory and contractual requirements.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 5                        |       |
| s.83               | N/A                                                | Cooperation with Commission. Controllers and processors must cooperate with the Commission in the performance of its tasks under Part 5 and must make available all information necessary to demonstrate compliance.                                                                                                                                                 | Functional     | Intersects With   | Statutory, Regulatory & Contractual Compliance                | CPL-01   | Mechanisms exist to facilitate the identification and implementation of relevant statutory, regulatory and contractual controls.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | 5                        |       |
| s.84               | N/A                                                | Data protection impact assessment and prior consultation with Commission. Controllers must carry out a data protection impact assessment prior to processing likely to result in a high risk to data subjects. Where a DPIA indicates a high risk that cannot be mitigated, the controller must consult the Commission prior to processing.                          | Functional     | Intersects With   | Data Protection Impact Assessment (DPIA)                      | RSK-10   | Mechanisms exist to conduct a Data Protection Impact Assessment (DPIA) on Technology Assets, Applications and/or Services (TAAS) that store, process and/or transmit Personal Data (PD) to identify and remediate reasonably-expected risks.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 5                        |       |
| s.85               | N/A                                                | Notification of personal data breach by processor. A processor must notify the controller without undue delay after becoming aware of a personal data breach.                                                                                                                                                                                                        | Functional     | Intersects With   | Incident Stakeholder Reporting                                | IRO-10   | Mechanisms exist to timely-report incidents to applicable:<br>(1) Internal stakeholders;<br>(2) Affected clients & third-parties; and<br>(3) Regulatory authorities.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 5                        |       |
| s.86               | N/A                                                | Notification of personal data breach to Commission, etc. Controllers must notify the Commission of a personal data breach without undue delay and, where feasible, not later than 72 hours after becoming aware of it, unless the breach is unlikely to result in a risk to the rights and freedoms of data subjects.                                                | Functional     | Intersects With   | Incident Stakeholder Reporting                                | IRO-10   | Mechanisms exist to timely-report incidents to applicable:<br>(1) Internal stakeholders;<br>(2) Affected clients & third-parties; and<br>(3) Regulatory authorities.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 5                        |       |
| s.87               | N/A                                                | Communication of personal data breach to data subject. Where a personal data breach is likely to result in a high risk to the rights and freedoms of data subjects, the controller must communicate the breach to the data subject without undue delay, subject to specified exceptions.                                                                             | Functional     | Intersects With   | Cyber Incident Reporting for Sensitive / Regulated Data       | IRO-10.2 | Mechanisms exist to report sensitive and/or regulated data incidents in a timely manner.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 5                        |       |
| s.88               | N/A                                                | Data protection officer. Controllers (other than courts acting in a judicial capacity) must appoint a data protection officer possessing expert knowledge of data protection law and practice. Two or more controllers may jointly appoint a DPO. Sets out the DPO's tasks, independence, and position within the organisation.                                      | Functional     | Intersects With   | Data Protection Officer (DPO)                                 | PRI-01.4 | Mechanisms exist to appoint a Data Protection Officer (DPO):<br>(1) Based on professional qualifications; and<br>(2) To be involved in all issues related to how Personal Data (PD) is collected, received, processed, stored, transmitted, shared, updated and/or disposed.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 5                        |       |
| Part 5 - Chapter 4 | Rights, and Restriction of Rights, of Data Subject | N/A                                                                                                                                                                                                                                                                                                                                                                  | Functional     | No Relationship   | N/A                                                           | N/A      | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 0                        |       |
| s.89               | N/A                                                | Rights in relation to automated decision making (Part 5). Decisions producing adverse legal effects for a data subject shall not be based solely on automated processing, including profiling, unless authorised by law.                                                                                                                                             | Functional     | Intersects With   | Automated Decision-Making Technology (ADMT) For Data Subject  | PRI-19   | Mechanisms exist to ensure data subject actions utilizing Automated Decision-Making Technology (ADMT) where computation replaces, or substantially replaces, human decisionmaking, conforms with all                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 5                        |       |
| s.90               | N/A                                                | Right to information. Controllers must ensure data subjects are provided with information about the identity of the controller, the DPO's contact details, the purposes of processing, and data subject rights, including the right to lodge a complaint with the Commission. The information may be provided via the controller's website.                          | Functional     | Intersects With   | Data Privacy Notice                                           | PRI-02   | Mechanisms exist to:<br>(1) Make data privacy notice(s) available to individuals upon first interacting with an organization and subsequently as necessary;<br>(2) Ensure that data privacy notices are clear and easy-to-understand, expressing relevant information about how Personal Data (PD) is                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 5                        |       |
| s.91               | N/A                                                | Right of access. Data subjects have the right to obtain confirmation from the controller whether their personal data are being processed and, where so, to receive a copy of the data, together with information about the purposes, categories, recipients, retention periods, origin of data, and the right to rectification, erasure, or restriction.             | Functional     | Intersects With   | Data Subject Empowerment                                      | PRI-06   | Mechanisms exist to provide authenticated data subjects the ability to:<br>(1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access;<br>(2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed;<br>(3) Obtain the source(s) of their PD;<br>(4) Obtain the categories of their PD being collected, received, processed, stored and shared;<br>(5) Request correction to their PD due to inaccuracies;<br>(6) Request erasure of their PD; and<br>(7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD. | 5                        |       |

| FDE #              | FDE Name                                                                     | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | STRM Rationale | STRM Relationship | SCF Control                       | SCF #     | Secure Controls Framework (SCF) Control Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Strength of Relationship | Notes |
|--------------------|------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|-----------------------------------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|-------|
| s.92               | N/A                                                                          | Right to rectification or erasure and restriction of processing. Data subjects have the right to obtain from the controller without undue delay the rectification of inaccurate personal data and, subject to conditions, the erasure of personal data or restriction of processing.                                                                                                                                                                                                                                                                                                                                                                                                                                        | Functional     | Intersects With   | Data Subject Empowerment          | PRI-06    | Mechanisms exist to provide authenticated data subjects the ability to: (1) Access their Personal Data (PD) that is being processed, stored and shared, except where the burden, risk or expense of providing access would be disproportionate to the benefit offered to the data subject through granting access; (2) Obtain answers on the specifics of how their PD is collected, received, processed, stored, transmitted, shared, updated and/or disposed; (3) Obtain the source(s) of their PD; (4) Obtain the categories of their PD being collected, received, processed, stored and shared; (5) Request correction to their PD due to inaccuracies; (6) Request erasure of their PD; and (7) Restrict the further collecting, receiving, processing, storing, transmitting, updated and/or sharing of their PD. | 5                        |       |
| s.93               | N/A                                                                          | Communication with data subject. Sets out the manner in which controllers must respond to data subject rights requests, including timelines, form of response, and rules on extending the period for response in complex cases.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Functional     | Intersects With   | Data Subject Feedback Management  | PRI-06.4  | Mechanisms exist to maintain a process to efficiently and effectively respond to requests, complaints, concerns and/or questions from authenticated data subjects about Personal Data (PD) the organization collects, receives, processes, stores, transmits, shares, updates and/or disposes.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 5                        |       |
| s.94               | N/A                                                                          | Restrictions on exercise of data subject rights (Part 5). Data subject rights under Chapter 4 may be restricted to the extent necessary and proportionate to avoid obstructing official or legal enquiries, investigations or procedures; to avoid prejudicing prevention, detection, investigation or prosecution of criminal offences; to protect public security; to protect the indirect exercise of rights and verification by Commission. Where a controller restricts data subject rights, the data subject may ask the Commission to verify the lawfulness of the restriction. The Commission shall inform the data subject whether it has verified compliance, without prejudice to Commission enforcement powers. | Functional     | Intersects With   | Reasonable Data Privacy Practices | PRI-01.11 | Mechanisms exist to limit the collection, receiving, processing, storage, transmission, sharing, updating and/or disposal of Personal Data (PD) according to reasonable consumer expectations for what is necessary and proportionate.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | 5                        |       |
| s.95               | N/A                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| Part 5 - Chapter 5 | Transfers of Personal Data to Third Countries or International Organisations | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.96               | N/A                                                                          | Transfer to third country or international organisation. Personal data processed under Part 5 may be transferred to a third country or international organisation only where the transfer is necessary for a law enforcement purpose, the receiving authority is competent for that                                                                                                                                                                                                                                                                                                                                                                                                                                         | Functional     | Intersects With   | Binding Corporate Rules (BCR)     | PRI-01.5  | Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 5                        |       |
| s.97               | N/A                                                                          | Adequacy decision. Transfers may be made to third countries where the European Commission has adopted an adequacy decision in respect of that country, recognising that it ensures an adequate level of protection.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Functional     | Intersects With   | Binding Corporate Rules (BCR)     | PRI-01.5  | Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 5                        |       |
| s.98               | N/A                                                                          | Transfer subject to appropriate safeguards. In the absence of an adequacy decision, transfers may be made subject to appropriate safeguards provided for in a legally binding instrument, binding corporate rules, standard data protection clauses adopted by the Commission, or contractual clauses authorised by a supervisory authority.                                                                                                                                                                                                                                                                                                                                                                                | Functional     | Intersects With   | Binding Corporate Rules (BCR)     | PRI-01.5  | Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 5                        |       |
| s.99               | N/A                                                                          | Derogations for specific situations. In the absence of an adequacy decision or appropriate safeguards, transfers may be made in specific situations including protection of vital interests, prevention of a serious and immediate threat to public security, or in individual cases for law enforcement purposes where necessary.                                                                                                                                                                                                                                                                                                                                                                                          | Functional     | Intersects With   | Binding Corporate Rules (BCR)     | PRI-01.5  | Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 5                        |       |
| s.100              | N/A                                                                          | Transfer to recipient in third country. A controller or processor may transfer data to a recipient in a third country only with the prior authorisation of the controller from which the data was obtained, subject to specified conditions.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Functional     | Intersects With   | Binding Corporate Rules (BCR)     | PRI-01.5  | Mechanisms exist to implement and manage Binding Corporate Rules (BCR) (e.g., data sharing agreement) to legally-bind all parties engaged in a joint economic activity that contractually states enforceable rights on data subjects with regard to the processing of their personal data.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 5                        |       |
| Part 5 - Chapter 6 | Independent Supervisory Authority                                            | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.101              | N/A                                                                          | Functions of Commission under Part 5. The Commission's functions under Part 5 include monitoring and enforcing compliance, promoting public                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.102              | N/A                                                                          | Power of the Commission to advise and issue opinions. The Commission may advise the Oireachtas, the Government, and public authorities on legislative and administrative measures relating to the protection of personal data in the law enforcement context, and issue opinions on matters referred to it.                                                                                                                                                                                                                                                                                                                                                                                                                 | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.103              | N/A                                                                          | Mutual assistance. The Commission shall cooperate with and provide mutual assistance to other EEA supervisory authorities in the performance of their functions under the Directive to ensure consistent application and enforcement.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.104              | N/A                                                                          | Requests by Commission for mutual assistance. The Commission may make requests for mutual assistance to supervisory authorities in other EEA states for information and the carrying out of supervisory measures, and must respond to requests received from other supervisory authorities                                                                                                                                                                                                                                                                                                                                                                                                                                  | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| Part 6             | Enforcement of Data Protection Regulation and Directive                      | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| Part 6 - Chapter 1 | Preliminary                                                                  | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.105              | N/A                                                                          | Interpretation (Part 6). Defines terms for Part 6 including: 'complaint'; 'investigation'; 'investigation report'; 'relevant enactment' (the GDPR and                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.106              | N/A                                                                          | Service of documents (Part 6). Provides rules for the service of documents under Part 6, including service by post, electronic means, or personal delivery, and provisions for service on companies and partnerships.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| Part 6 - Chapter 2 | Enforcement of Data Protection Regulation                                    | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.107              | N/A                                                                          | Interpretation (Chapter 2). Defines 'competent supervisory authority', 'cross-border processing', 'lead supervisory authority', and 'main                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |
| s.108              | N/A                                                                          | Complaints under Chapter 2: General. Where a complaint is lodged, the Commission must acknowledge receipt in writing and inform the complainant of their right to judicial remedy under section 150 and, where applicable, that a supervisory authority of another Member State is the                                                                                                                                                                                                                                                                                                                                                                                                                                      | Functional     | No Relationship   | N/A                               | N/A       | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | 0                        |       |

| FDE #              | FDE Name                          | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                                 | STRM Rationale | STRM Relationship | SCF Control | SCF # | Secure Controls Framework (SCF) Control Description | Strength of Relationship | Notes |
|--------------------|-----------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|-------------|-------|-----------------------------------------------------|--------------------------|-------|
| s.109              | N/A                               | Commission to handle complaint under Chapter 2. Sets out the Commission's obligations when handling complaints, including carrying out a sufficient investigation, notifying the controller or processor, deciding on admissibility, and issuing a decision within three months or informing the complainant of delays.                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.110              | N/A                               | Commission may conduct inquiry into suspected infringement of relevant enactment. The Commission may, of its own volition, conduct an inquiry into a suspected infringement of the GDPR or relevant provisions of this Act where it has reasonable grounds to suspect non-compliance.                                                                    | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.111              | N/A                               | Decision of Commission where inquiry under Chapter 2 conducted of own volition. Following an own-volition inquiry, the Commission must decide whether an infringement has occurred and, if so, whether to exercise a corrective power and which power to exercise.                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.112              | N/A                               | Decision of Commission where inquiry conducted in respect of complaint to which Article 55 or 56(5) applies. Sets out the Commission's decision-making procedure following an inquiry into a complaint in which it is the competent supervisory authority under Article 55 or 56(5) GDPR.                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.113              | N/A                               | Complaint to which Article 50 applies. Sets out the procedure for cross-border complaints where the Commission is the lead supervisory authority under Article 56 GDPR, including cooperation with concerned supervisory authorities.                                                                                                                    | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.114              | N/A                               | Commission to adopt decision in certain circumstances. The Commission must adopt a decision where a complaint relates to processing carried out by a controller or processor not established in the EEA.                                                                                                                                                 | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.115              | N/A                               | Exercise by Commission of corrective power. The Commission may, following an inquiry or complaint, exercise corrective powers including issuing warnings, reprimands, orders to comply, and administrative fines.                                                                                                                                        | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.116              | N/A                               | Notification of decision of Commission under Chapter 2. The Commission must notify the controller, processor, and complainant (if any) of its decision in writing, including reasons, and inform them of the right to judicial remedy under section 150.                                                                                                 | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.117              | N/A                               | Judicial remedy for infringement of relevant enactment. A data subject may bring a data protection action in the Circuit Court or High Court where they consider their rights under the GDPR or this Act have been infringed, seeking injunctions, declarations, or compensation for material and non-                                                   | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.117A             | N/A                               | Judicial remedy for infringement of certain appropriate safeguards on transfers of personal data outside the European Union. Provides a judicial remedy for data subjects in relation to infringements of appropriate safeguards (binding corporate rules, standard contractual clauses, and other transfer mechanisms) on international data transfers. | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 6 - Chapter 3 | Enforcement of Directive          | N/A                                                                                                                                                                                                                                                                                                                                                      | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.118              | N/A                               | Interpretation (Chapter 3). Defines 'competent supervisory authority', 'cross-border processing', and 'relevant provision' for the purposes of                                                                                                                                                                                                           | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.119              | N/A                               | Data subject may lodge complaint with Commission. A data subject has the right to lodge a complaint with the Commission where they consider that processing of personal data relating to them infringes the Law                                                                                                                                          | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.120              | N/A                               | Representation of data subjects. Data subjects may mandate a body, organisation, or association that is active in the field of data protection to lodge a complaint and exercise data protection actions on their behalf.                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.121              | N/A                               | Complaints under Chapter 3: General. Sets out general requirements for handling complaints under the Directive, including acknowledgement, investigation, and notification requirements.                                                                                                                                                                 | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.122              | N/A                               | Commission to handle complaint under Chapter 3. Sets out the Commission's obligations when handling a complaint relating to processing under the Directive, including investigation requirements and                                                                                                                                                     | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.123              | N/A                               | Commission may conduct inquiry into suspected infringements of relevant provision. The Commission may conduct an own-volition inquiry into suspected infringements of Part 5 of this Act.                                                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.124              | N/A                               | Decision of Commission in respect of inquiry under Chapter 3 conducted of own volition. Sets out the Commission's decision-making obligations following an own-volition inquiry under the Directive.                                                                                                                                                     | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.125              | N/A                               | Decision of Commission where inquiry conducted in respect of complaint under Chapter 3. Sets out the procedure for Commission decisions following an inquiry into a complaint relating to law enforcement                                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.126              | N/A                               | Notification of decision of Commission under Chapter 3. Requires the Commission to notify the controller, processor, and complainant of its decision in writing, with reasons and information about the right to judicial remedy.                                                                                                                        | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.127              | N/A                               | Corrective powers of Commission (Chapter 3). The Commission may exercise corrective powers including issuing warnings, reprimands, orders to comply, limitation or prohibition of processing, and suspension of data flows to third countries.                                                                                                           | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.128              | N/A                               | Judicial remedy for infringement of relevant provision. A data subject may bring an action in court against a controller or processor where they consider that processing infringes Part 5 of this Act, seeking injunctions, declarations, or compensation.                                                                                              | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 6 - Chapter 4 | Inspection, Audit and Enforcement | N/A                                                                                                                                                                                                                                                                                                                                                      | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.129              | N/A                               | Authorised officers. The Commission may appoint suitably qualified members of its staff or other persons as authorised officers for the                                                                                                                                                                                                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.130              | N/A                               | Powers of authorised officers. Authorised officers may enter any premises, inspect and copy documents and records, require persons to produce information, and exercise other powers necessary for the Commission to carry out its functions under the GDPR and this Act.                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.131              | N/A                               | Search warrants. Where a judge of the District Court is satisfied that there are reasonable grounds for suspecting that evidence of a contravention is on any premises, the judge may issue a search warrant authorising an authorised officer to enter and search the premises.                                                                         | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.132              | N/A                               | Information notice. The Commission or an authorised officer may serve a written information notice on a controller or processor requiring it to furnish specified information within a stated period, for the purpose of investigating a suspected infringement.                                                                                         | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.133              | N/A                               | Enforcement notice. The Commission or an authorised officer may serve an enforcement notice on a controller or processor requiring it to take or cease taking specified action within a stated period, where the Commission or officer is satisfied that the controller or processor has                                                                 | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.134              | N/A                               | Circumstances in which application may be made to the High Court for suspension or restriction of processing of data. The Commission may apply to the High Court for an order suspending or restricting the processing of personal data where there is an urgent need to prevent serious harm to the rights and freedoms of data subjects.               | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |

| FDE #              | FDE Name                 | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                  | STRM Rationale | STRM Relationship | SCF Control | SCF # | Secure Controls Framework (SCF) Control Description | Strength of Relationship | Notes |
|--------------------|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|-------------|-------|-----------------------------------------------------|--------------------------|-------|
| s.135              | N/A                      | Power to require report. The Commission may require a controller or processor to prepare and submit a written report on its data processing activities, practices, and compliance measures.                                                                                                                                               | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.136              | N/A                      | Data Protection Audit. The Commission may carry out or commission a data protection audit of a controller or processor to assess its compliance with the GDPR, Directive, and this Act.                                                                                                                                                   | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 6 - Chapter 5 | Investigations           | N/A                                                                                                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.137              | N/A                      | Investigations. The Commission may, of its own volition or at the request of the supervisory authority of another Member State, direct one or more                                                                                                                                                                                        | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.138              | N/A                      | Conduct of investigation under section 137. Sets out the procedure for conducting an investigation, including the right of the controller or processor to respond to notice of the investigation, the power to take evidence on oath, and procedural provisions for oral hearings under Schedule 3.                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.139              | N/A                      | Investigation report. Following an investigation, the authorised officer must prepare a written report setting out the findings and submit it to the Commission within a specified period.                                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.140              | N/A                      | Commission to consider investigation report. On receiving an investigation report, the Commission must consider it and decide whether to take enforcement action, initiate proceedings, or close the matter.                                                                                                                              | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 6 - Chapter 6 | Administrative Fines     | N/A                                                                                                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.141              | N/A                      | Power of Commission to decide to impose administrative fine: General. The Commission may impose administrative fines under Article 83 GDPR.                                                                                                                                                                                               | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.142              | N/A                      | Appeal against administrative fine. A controller or processor subject to an administrative fine decision may appeal to the Circuit Court within 28 days of notification of the decision.                                                                                                                                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.143              | N/A                      | Circuit Court to confirm decision to impose administrative fine. The Circuit Court must confirm the Commission's decision to impose an administrative fine unless the Court sees good reason not to do so.                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 6 - Chapter 7 | Offences                 | N/A                                                                                                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.144              | N/A                      | Unauthorised disclosure by processor. Personal data processed by a processor must not be disclosed by the processor or its employees or                                                                                                                                                                                                   | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.145              | N/A                      | Disclosure of personal data obtained without authority. Obtaining personal data and disclosing it to another person without prior authority of the controller or processor is an offence punishable by the same penalties as section 144.                                                                                                 | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.146              | N/A                      | Offences by directors, etc., of bodies corporate. Where an offence under this Act is committed by a body corporate and is proved to have been attributable to the act or omission of a director, manager, secretary, or other officer of the body, that person is also guilty of the offence.                                             | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.147              | N/A                      | Prosecution of summary offences by Commission. The Commission may prosecute summary offences under this Act.                                                                                                                                                                                                                              | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 6 - Chapter 8 | Miscellaneous            | N/A                                                                                                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.148              | N/A                      | General provisions relating to complaints. Sets out general provisions governing the complaint process including the right to bring proceedings in                                                                                                                                                                                        | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.149              | N/A                      | Publication of convictions, sanctions, etc. The Commission may publish information about decisions, convictions, fines, warnings, reprimands, and corrective orders issued under this Act, having regard to the right to privacy and other relevant considerations.                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.150              | N/A                      | Right to effective judicial remedy (Part 6). Data subjects and controllers have the right to an effective judicial remedy against decisions of the Commission. Specifies the courts with jurisdiction and the procedures for bringing data protection actions.                                                                            | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.151              | N/A                      | Privileged legal material. Nothing in this Act requires the production of or authorises the taking of any document subject to legal professional privilege, and authorised officers must return any such document discovered during an inspection.                                                                                        | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.152              | N/A                      | Presumptions. Provides for presumptions in proceedings under this Act, including that data in the possession of the controller has been processed by the controller, and that material found on premises is connected with activities carried out on those premises.                                                                      | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.153              | N/A                      | Expert evidence. In proceedings under the GDPR or this Act, expert evidence from a witness with appropriate qualifications or experience in data protection matters is admissible, subject to any direction of the court.                                                                                                                 | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.154              | N/A                      | Immunity from suit. The Commission and its Commissioners, staff, and authorised officers are not personally liable for acts done or omissions made in the performance of their functions in good faith.                                                                                                                                   | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.155              | N/A                      | Jurisdiction of Circuit Court. Confers jurisdiction on the Circuit Court to hear data protection actions where the amount claimed or the relief sought is within the Court's jurisdictional limits.                                                                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.156              | N/A                      | Hearing of proceedings. Provides that data protection proceedings shall be heard in the appropriate court as expeditiously as possible, and sets out procedural requirements for the management of data protection litigation.                                                                                                            | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 7             | Miscellaneous Provisions | N/A                                                                                                                                                                                                                                                                                                                                       | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.157              | N/A                      | Supervisory authority for courts acting in judicial capacity. The judge assigned by the Chief Justice for this purpose shall be competent for                                                                                                                                                                                             | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.158              | N/A                      | Restrictions on obligations of controllers and rights of data subjects for objective of safeguarding judicial independence and court proceedings. Restricts the rights and obligations under the GDPR to the extent necessary and proportionate to safeguard the independence of the judiciary and the integrity of judicial proceedings. | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.159              | N/A                      | Processing of personal data where court is controller. Where a court is a controller for GDPR purposes (i.e., not acting in judicial capacity), the court shall comply with the obligations of a controller under the GDPR, subject to modifications in this Part.                                                                        | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.160              | N/A                      | Publication of judgment or decision of court or court list. Enables courts to publish judgments, decisions, and court lists notwithstanding data protection obligations, subject to any rules of court and the right to apply for an order restricting publication of identifying information.                                            | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |

| FDE #     | FDE Name                               | Focal Document Element (FDE) Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | STRM Rationale | STRM Relationship | SCF Control | SCF # | Secure Controls Framework (SCF) Control Description | Strength of Relationship | Notes |
|-----------|----------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------|-------------|-------|-----------------------------------------------------|--------------------------|-------|
| s.161     | N/A                                    | Rules of court for data protection actions. Empowers the relevant rule-making authorities to make rules of court governing data protection actions, including rules on timelines, costs, and the involvement of the Commission.                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.162     | N/A                                    | Legal privilege. Nothing in the GDPR or this Act shall require or authorise the breach of legal professional privilege or the production of privileged material in proceedings before any court or tribunal.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.163     | N/A                                    | Application to High Court concerning adequate level of protection or appropriate safeguards. A controller may apply to the High Court for a declaration that a third country or international organisation provides an adequate level of protection or that appropriate safeguards are in place for                                                                                                                                                                                                                                                                                                                                                                                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.164     | N/A                                    | Court may order destruction, erasure of data. In proceedings under this Act, a court may order a controller or processor to destroy or erase personal data that was obtained, held, or processed in contravention of the GDPR or this Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Part 8    | Amendments of Other Acts of Oireachtas | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.165-166 | N/A                                    | Reference to personal data and processing in enactments. Sections 165 and 166 provide that where any enactment refers to personal data or to the                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.167-172 | N/A                                    | Amendments to criminal justice and financial sector enactments. Sections 167–172 amend the Firearms Act 1925, Central Bank Act 1942, Civil Service Regulation Act 1956, Misuse of Drugs Act 1977, Control of Clinical Trials Act 1987, Data Protection Act 1988, and Bankruptcy Act 1988 to update references to data protection, align definitions of personal data and processing with the GDPR, and restrict data subject access rights where necessary and proportionate to the effective performance of official                                                                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.173-183 | N/A                                    | Amendments to regulatory and sector-specific enactments. Sections 173–183 amend the Firearms and Offensive Weapons Act 1990, Electoral Act 1992, Comptroller and Auditor General (Amendment) Act 1993, Interception of Postal Packets Act 1993, Statistics Act 1993, Irish Aviation Authority Act 1993, Health Insurance Act 1994, Consumer Credit Act 1995, Irish Medicines Board Act 1995, Central Bank Act 1997, and Health (Provision of Information) Act 1997 to update data protection references and restrict access rights proportionately.                                                                                                                                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.184-210 | N/A                                    | Amendments to utility, health, and social welfare enactments. Sections 184–210 amend the Electricity Regulation Act 1999, British-Irish Agreement Act 1999, Comhairle Act 2000, Commission to Inquire Into Child Abuse Act 2000, Merchant Shipping Act 2000, Education (Welfare) Act 2000, Planning and Development Act 2000, Dormant Accounts Act 2001, Residential Institutions Redress Act 2002, Official Languages Act 2003, and numerous other Acts, updating data protection terminology, aligning definitions with the GDPR, and restricting data subject access rights where necessary to safeguard official functions.                                                                      | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| s.211-232 | N/A                                    | Amendments to criminal justice, insolvency, and miscellaneous enactments. Sections 211–232 amend the Criminal Justice (Miscellaneous Provisions) Act 2009, National Asset Management Agency Act 2009, Criminal Justice (Money Laundering) Act 2010, Communications (Retention of Data) Act 2011, Student Support Act 2011, Communications Regulation (Postal Services) Act 2011, Property Services Act 2011, Credit Union Act 2012, Europol Act 2012, Personal Insolvency Act 2012, Companies Act 2014, Health Identifiers Act 2014, Freedom of Information Act 2014, Regulation of Lobbying Act 2015, Sport Ireland Act 2015, Criminal Justice (Spent Convictions) Act 2016, Financial Services and | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Schedules | Schedules                              | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Sched. 1  | N/A                                    | Statutory Instruments Revoked. Lists the statutory instruments revoked by section 7(1) of this Act, consisting of ten instruments made under the Data                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Sched. 2  | N/A                                    | Data Protection Commission. Sets out the governance provisions applicable to the Commission, including its corporate status (body corporate with perpetual succession and official seal), authentication of the seal, judicial notice of instruments, ineligibility of Members of the Oireachtas, MEPs, and local authority members for Commission membership, and related constitutional and operational provisions.                                                                                                                                                                                                                                                                                | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |
| Sched. 3  | N/A                                    | Provisions Applicable to Oral Hearing Conducted by an Authorised Officer Under Section 138. Sets out procedural provisions for oral hearings in investigations, including the power to take evidence on oath, the obligation to attend and produce documents when required, the right to legal representation, rules on the conduct of hearings, and provisions for making a record of the proceedings.                                                                                                                                                                                                                                                                                              | Functional     | No Relationship   | N/A         | N/A   | N/A                                                 | 0                        |       |